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Calif. Gov. Newsom Takes Action on Legislation to Support California's Immigrant and Refugee Communities

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SACRAMENTO, California, Sept. 28 -- Gov. Gavin Newsom, D-California, issued the following news release on Sept. 27:

Governor Gavin Newsom today took action on several bills that continue California's long-standing leadership as a state of inclusion and refuge. He also signed AB 3228, which strengthens accountability around conditions of confinement at private, for-profit detention facilities, including immigration detention facilities, operating in California.

"California is a greater and more vibrant place because of our immigrant and refugee communities," said Governor Newsom. "I thank the Legislature for advancing these policies to support our fellow Californians, no matter where they were born."

Governor Newsom signed several bills to strengthen protections and expand opportunity for refugees and immigrants in California. Notably, AB 3133 by Assemblymember Cecilia Aguiar-Curry (D-Winters), in response to federal rhetoric and actions, affirms that California will continue to welcome refugees regardless of race, religion, ethnicity or sexual orientation.

He also signed AB 2426 by Assemblymember Eloise Gomez Reyes (D-Grand Terrace), which provides important clarity regarding access to humanitarian protections, including which law enforcement agencies are required to process U and T visa certifications for victims of crimes, including human trafficking.

Additionally, he signed AB 2113 by Assemblymember Evan Low (D-Campbell), which expedites professional licensing for refugees, asylees and special immigrant visa holders. Under the bill, these individuals will be able to apply for expedited professional licensure so that they can pursue meaningful careers in our state.

Governor Newsom today also advanced policy to increase accountability for private detention facilities, which include privately-operated, for-profit immigration detention centers. Last year, Governor Newsom signed AB 32 in response to abuses in private detention facilities, to ultimately eliminate these facilities in California. The bill he signed today, AB 3228 by Assemblymember Rob Bonta (D-Oakland), furthers that goal by requiring private detention facilities, including private immigration detention centers, to comply with detention standards of care and confinement. This legislation comes amid increasing reports of medical neglect and abuse in private, for-profit detention facilities during the COVID-19 pandemic.

"The signing of AB 3228 is a victory for human rights and for justice, and I deeply appreciate Governor Newsom's partnership and leadership on this issue," said Assemblymember Bonta. "This is California putting our people first. Our California values make clear that no one is above the law. For-profit, private detention centers must be held accountable in the face of egregious human rights violations and harm to the health, safety, and welfare of Californians, especially during the COVID-19 pandemic. And the horrific recent reports of forced sterilization of female detainees in a private detention center in Georgia further demonstrate the need for greater oversight of these private corporations, whose business model provides for profiting off of human suffering."

Governor Newsom also signed:

* AB 1969 by Assemblymember Blanca Rubio (D-Baldwin Park) - Secondhand goods: tangible personal property: reporting requirements.

* AB 2788 by Assemblymembers Todd Gloria (D-San Diego) and Jesse Gabriel (D-Encino) - Public utilities: cooperation with immigration authorities.

* SB 905 by Senator Bob Archuleta (D-Pico Rivera) - Criminal history information requests.

Today's actions build on California's leadership in support of California's immigrant community amid the COVID-19 pandemic. In April, Governor Newsom announced a first-in-the-nation statewide public-private partnership to provide $125 million in disaster relief assistance to undocumented Californians. California's $75 million investment has reached 150,000 people across the state and the privately-funded Immigrant Resilience Fund has raised $46.9 million to date.

Governor Newsom also recently signed AB 1876, further expanding access to the California Earned Income Tax Credit (CalEITC) to ensure all California tax filers, specifically undocumented ITIN filers who are otherwise eligible, may qualify for the CalEITC and the Young Child Tax Credit (YCTC). Expanded access to the California Earned Income Tax Credit will bolster immigrant families facing COVID-19 induced recession and boost economic growth. In 2020, over $1 billion has gone back into the pockets of more than 3.6 million Californians and their families through these programs.

In addition to expansions related to CalEITC, the 2020-21 state budget provided additional investments to support immigrant families:

* $10 million General Fund investment for the Social Entrepreneurs for Economic Development (SEED) initiative, providing entrepreneurial training for individuals, including those who are limited English proficient or undocumented. The purpose of this initiative is to support economically disadvantaged communities facing significant barriers to employment by advancing economic mobility through entrepreneurial opportunities and spurring economic and racial justice alongside economic contributions to the state.

* $15 million one-time Proposition 98 General Fund for the California Newcomer Education and Well-Being Project to assist school districts in supporting refugee and unaccompanied undocumented minor students' well-being and academic performance. The funding, which is available over three years, also will provide school-based supports to immigrant families for access to safety net and wellness programs including through guidance about federal immigration policies like the public charge, that contribute to a chilling effect on government assistance and deeper inequities.

* $75 million ongoing investment in immigration services, including funding to provide legal services to immigrant students, faculty and staff on community college campuses. In September, $5 million was made available for Deferred Action for Childhood Arrivals (DACA) legal services and filing fees.

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